Education & Skills Funding Agency

20 Great Smith Street
London
SW1P 3BT

T 0370 000 2288

THIS VARIATION is made on the date the Variation is digitally signed by the Training Provider on the "Manage your education and skills funding service" and shall be deemed to be effective from 1 April 2022 ("the Variation Date").

BETWEEN: -

(1) **THE SECRETARY OF STATE FOR EDUCATION DEPARTMENT FOR EDUCATION** 20 Great Smith Street London SW1P 3BT (**"the Department")**; and

(2) **10017244 Co Ltd** Company No: AA017244 (10017244) whose registered office is situated at 71 London Road, Sevenoaks, Kent, TN13 1AX (**"the Training Provider"**).

RECITALS: -

(A) The Department and the Training Provider entered into an Apprenticeship Agreement for the provision of Apprenticeship Training with the Department's reference number of ESFA-159059 ("**Original Agreement**").

(B) The Department and the Training Provider have agreed to vary the terms of the Original Agreement as set out in this Variation.

(C) The Department's reference number for this Variation is Winter 2022, Version 4.1.

IT IS AGREED as follows: -

1. **CONSIDERATION**

In consideration of each of the parties entering into this Variation (such consideration being agreed by the parties to be good and valuable consideration, the adequacy and sufficiency of which is hereby acknowledged and agreed), the parties have agreed to vary the Original Agreement in accordance with Clause 30 (Variation) of the Original Agreement.

2. **VARIATION OF THE ORIGINAL AGREEMENT**

2.1 The parties agree with effect from the Variation Date the Original Agreement shall be varied as set out in Annex 1 attached.

2.2 Subject to Annex 1, the Original Agreement as amended by the previous variations shall continue in full force and effect in all respects.

2.3 In addition to the amendments set out in Annex 1, the Original Agreement shall be construed and interpreted with such further consequential amendments as are necessary to give effect to the amendments set out in Annex 1 of this Variation, as if such further amendments were also expressly set out in Annex 1.

2.4 Except as expressly provided for in Clause 2.3 and Annex 1, the parties agree that no other liabilities, financial or otherwise, shall accrue to the Department because of this Variation.

3. SEVERABILITY

The provisions of this Variation are intended by the parties to be severable in the event that any part of it is held to be illegal or unenforceable (in whole or in part) and such part shall not affect the validity and enforceability of the remaining provisions or the remainder of the affected provision under this Variation.

4. AUTHORITY AND COSTS

Each party undertakes that it has full power and authority to enter into and shall be responsible for its own costs arising in relation to this Variation.

5. THE CONTRACTS (RIGHTS OF THIRD PARTIES) ACT 1999

5.1 Subject to Clause 5.2 below, this Variation is not intended to create any benefit, claim or rights of any kind whatsoever enforceable by any person who is not a party to this Variation. Accordingly, the parties confirm that no term of this Variation is enforceable under the Contracts (Rights of Third Parties) Act 1999 by a person who is not a party to this Variation.

5.2 It is the intention of the parties that any other department, officer or agency of the Crown, may as required from time to time act as the Department's agent in enforcing the Department's rights under this Variation.

6. GOVERNING LAW AND JURISDICTION

The parties agree that this Variation and any dispute arising under or in any way connected with the subject matter of this Variation (whether of a contractual or tortious nature or otherwise) shall be governed by and construed in accordance with the laws of England, and the parties submit to the jurisdiction of the English Courts.

7. ACCEPTANCE BY THE TRAINING PROVIDER

The person that accepts this Variation via the “Manage your education and skills funding service” on behalf of the Training Provider represents and warrants to the Department that the Training Provider has read and understood this Variation, that the Training Provider agrees to be bound by this Variation and that he/she is duly authorised to enter into this Variation and legally bind the Training Provider.

This Variation is made on the date the Variation is digitally signed by the Training Provider on the “Manage your education and skills funding service”.

SIGNED FOR AND ON BEHALF OF
THE SECRETARY OF STATE FOR EDUCATION
by Warwick Sharp, Interim Chief Executive of the Education and Skills Funding Agency



ANNEX 1

VARIATIONS TO ORIGINAL AGREEMENT

All references to Clauses and paragraphs in this Annex 1 are to Clauses and paragraphs in the Original Agreement.

A copy of the revised Department for Education Apprenticeship Agreement for Training Providers, Winter 2022, Version 4.1, which incorporates the amendments detailed below, will be published in due course on Gov.uk at Apprenticeship funding: legal agreement for training providers - GOV.UK (www.gov.uk)

1. Definitions

Amend the definition of "Department" as follows and replace references of ESFA with Department:

"Department"	means the Secretary of State for **Education acting through the Department for Education and / or Education and Skills Funding Agency (ESFA).**

Amend the definition of "ESFA" as follows:

"ESFA"	means the Education and Skills Funding Agency, an executive agency of the Department for Education, whose principal address is at Cheylesmore House, Quinton Road, Coventry, CV1 2WT.

Add Clauses 1.7 and 1.8 as follows:

1.7. In relation to any provision in the Agreement, the Secretary of State may act through the Department for Education and / or its executive agency, ESFA. As such where the Agreement refers to the Department, both the Department for Education and the ESFA are entitled to act in accordance with; and / or benefit from; and / or enforce the relevant provision.

1.8. Without prejudice to the position set out in Clause 1.7, the Department for Education will principally manage provider registers, the relationship with the Training Provider and any intervention. The ESFA will principally be responsible for payments, Agreement administration and assurance.